

CODE OF CRIMINAL PROCEDURE

TITLE 2. CODE OF CRIMINAL PROCEDURE

CHAPTER 102. COSTS, FEES, AND FINES PAID BY DEFENDANTS

SUBCHAPTER A. COSTS; REIMBURSEMENT FEES; FINES

Art. 102.001. REIMBURSEMENT FEES FOR SERVICES OF PEACE OFFICERS. (a) Repealed by Acts 1989, 71st Leg., ch. 826, Sec. 2, eff. Sept. 1, 1989.

(b) A defendant required to pay reimbursement fees under this article shall pay 15 cents per mile for mileage required of an officer to perform a service listed in this subsection and to return from performing that service. If the service provided is the execution of a writ and the writ is directed to two or more persons or the officer executes more than one writ in a case, the defendant is required to pay only mileage actually and necessarily traveled. In calculating mileage, the officer must use the railroad or the most practical route by private conveyance. This subsection applies to:

(1) conveying a prisoner after conviction to the county jail;

(2) conveying a prisoner arrested on a warrant or capias issued in another county to the court or jail of the county in which the warrant or capias was issued; and

(3) traveling to execute criminal process, to summon or attach a witness, and to execute process not otherwise described by this article.

(c) to (e) Repealed by Acts 1989, 71st Leg., ch. 826, Sec. 2, eff. Sept. 1, 1989.

(f) Repealed by Acts 2019, 86th Leg., Ch. 1352 (S.B. 346), Sec. 4.40(1), eff. January 1, 2020.

(g) Relettered from (e) by Acts 1989, 71st Leg., ch. 2, Sec. 16.01(12), eff. Aug. 28, 1989, and repealed by Acts 1989, 71st Leg., ch. 826, Sec. 2, eff. Sept. 1, 1989.

(h) Repealed by Acts 2019, 86th Leg., Ch. 1352 (S.B. 346), Sec. 4.40(1), eff. January 1, 2020.

Added by Acts 1985, 69th Leg., ch. 269, Sec. 1, eff. Sept. 1, 1985.

Subsecs. (a) amended and (e), (f) added by Acts 1987, 70th Leg., ch. 167, Sec. 4.01(a), eff. Sept. 1, 1987; Subsec. (e) added by Acts 1987, 70th Leg., ch. 821, Sec. 1, eff. Sept. 1, 1987; Subsecs. (b), (f) amended by and (h) added by Acts 1989, 71st Leg., ch. 347, Sec. 1, eff. Oct. 1, 1989; Subsec. (g) relettered from Subsec. (e) by Acts 1989, 71st Leg., ch. 2, Sec. 16.01(12), eff. Aug. 28, 1989.

Amended by:

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 2.25, eff. January 1, 2020.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 2.26, eff. January 1, 2020.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 4.40(1), eff. January 1, 2020.

Art. 102.002. WITNESS FEES. (a) Repealed by Acts 1999, 76th Leg., ch. 580, Sec. 11(a), eff. Sept. 1, 1999.

(b) The justices of the peace and municipal courts shall maintain a record of and the clerks of district and county courts and county courts at law shall keep a book and record in the book:

(1) the number and style of each criminal action before the court;

(2) the name of each witness subpoenaed, attached, or recognized to testify in the action; and

(3) whether the witness was a witness for the state or for the defendant.

(c) Except as otherwise provided by this subsection, a defendant is liable on conviction for the fees provided by this article for witnesses in the defendant's case. If a defendant convicted of a misdemeanor does not pay the defendant's fines and costs, the county or municipality, as appropriate, is liable for the fees provided by this article for witnesses in the defendant's case.

(d) If a person is subpoenaed as a witness in a criminal case and fails to appear, the person is liable for the costs of an attachment, unless he shows good cause to the court why he did not appear.

Added by Acts 1985, 69th Leg., ch. 269, Sec. 1, eff. Sept. 1, 1985.

Subsecs. (a), (b) repealed by Acts 1999, 76th Leg., ch. 580, Sec. 11(a), eff. Sept. 1, 1999; Subsec. (b) amended by Acts 1999, 76th Leg., ch. 1545, Sec. 63, eff. Sept. 1, 1999; Subsec. (c) repealed by Acts 1999, 76th Leg., ch. 580, Sec. 11(a), eff. Sept. 1, 1999; Subsec. (c) amended by Acts 1999, 76th Leg., ch. 1545, Sec. 63, eff. Sept. 1, 1999.

Art. 102.0061. FEES IN EXPUNCTION PROCEEDINGS. (a) In addition to any other fees required by other law and except as provided by Subsections (c) and (d), a petitioner seeking expunction of a criminal record in a district court shall pay the fee charged for filing an ex parte petition in a civil action in district court.

(b) In addition to any other fees required by other law and except as provided by Subsection (c), a petitioner seeking expunction of a criminal record in a justice court or a municipal court of record under Chapter 55A shall pay a fee of \$100 for filing an ex parte petition for expunction to defray the cost of notifying state agencies of orders of expunction under that chapter.

(c) The fee under Subsection (a) or the fee under Subsection (b), as applicable, shall be waived if:

(1) the petitioner seeks expunction of a criminal record that relates to an arrest for an offense of which the person was acquitted, other than an acquittal for an offense described by Article 55A.151; and

(2) the petition for expunction is filed not later than the 30th day after the date of the acquittal.

(d) The fee under Subsection (a) shall be waived if the petitioner is entitled to expunction:

(1) under Article 55A.053(a)(2)(A) after successful completion of a veterans treatment court program created under Chapter 124, Government Code, or former law; or

(2) under Article 55A.053(a)(2)(B) after successful completion of a mental health court program created under Chapter 125, Government Code, or former law.

(e) A court that grants a petition for expunction of a criminal record may order the fee, or portion of the fee, required

to be paid under Subsection (a) to be returned to the petitioner.
Added by Acts 2025, 89th Leg., 2nd C.S., Ch. 7 (H.B. 16), Sec.
7.02(a), eff. January 1, 2026.

Art. 102.007. REIMBURSEMENT FEE FOR COLLECTING AND
PROCESSING CHECK OR SIMILAR SIGHT ORDER. (a) A county attorney,
district attorney, or criminal district attorney may collect a
reimbursement fee if the attorney's office collects and processes a
check or similar sight order, as defined by Section 1.07, Penal
Code, and the check or similar sight order:

(1) has been issued or passed in a manner that makes
the issuance or passing an offense under:

- (A) Section 31.03, Penal Code;
- (B) Section 31.04, Penal Code; or
- (C) Section 32.41, Penal Code; or

(2) has been forged, as defined by Section 32.21,
Penal Code.

(b) The county attorney, district attorney, or criminal
district attorney may collect the reimbursement fee from any person
who is a party to the offense described in Subsection (a).

(c) The amount of the reimbursement fee may not exceed:

(1) \$10 if the face amount of the check or sight order
does not exceed \$10;

(2) \$15 if the face amount of the check or sight order
is greater than \$10 but does not exceed \$100;

(3) \$30 if the face amount of the check or sight order
is greater than \$100 but does not exceed \$300;

(4) \$50 if the face amount of the check or sight order
is greater than \$300 but does not exceed \$500; and

(5) \$75 if the face amount of the check or sight order
is greater than \$500.

(d) If the person from whom the reimbursement fee is
collected was a party to the offense of forgery, as defined by
Section 32.21, Penal Code, committed by altering the face amount of
the check or sight order, the face amount as altered governs for the
purposes of determining the amount of the fee.

(e) In addition to the reimbursement fee specified in

Subsection (c), the county attorney, district attorney, or criminal district attorney may collect the fee authorized by Section [3.506](#), Business & Commerce Code, for the benefit of the holder of a check or similar sight order or the holder's assignee, agent, representative, or any other person retained by the holder to seek collection of the check or order.

(f) Reimbursement fees collected under Subsection (c) shall be deposited in the county treasury in a special fund to be administered by the county attorney, district attorney, or criminal district attorney. Expenditures from this fund shall be at the sole discretion of the attorney and may be used only to defray the salaries and expenses of the prosecutor's office, but in no event may the county attorney, district attorney, or criminal district attorney supplement his or her own salary from this fund.

(g) In addition to the reimbursement fee specified in Subsections (b) and (c), the issuer of a check or similar sight order that has been issued or passed as described by Subsection (a)(1) is liable for a reimbursement fee in an amount equal to the costs of delivering notification by registered or certified mail with return receipt requested. The reimbursement fee under this subsection must be collected in all cases described by Subsection (a)(1), and on receipt of proof of the actual costs expended, the fee shall be remitted to the holder of the check or similar sight order.

Added by Acts 1985, 69th Leg., ch. 269, Sec. 1, eff. Sept. 1, 1985. Subsec. (e) amended by and Subsec. (f) added by Acts 1991, 72nd Leg., ch. 396, Sec. 2, eff. Sept. 1, 1991; Subsec. (c) amended by Acts 1997, 75th Leg., ch. 256, Sec. 1, eff. Sept. 1, 1997; amended by Acts 1999, 76th Leg., ch. 49, Sec. 1, eff. Sept. 1, 1999; Subsec. (e) amended by Acts 2001, 77th Leg., ch. 1420, Sec. 2.001(b), eff. Sept. 1, 2001.

Amended by:

Acts 2007, 80th Leg., R.S., Ch. 976 (S.B. [548](#)), Sec. 3, eff. September 1, 2007.

Acts 2013, 83rd Leg., R.S., Ch. 128 (S.B. [821](#)), Sec. 8, eff. September 1, 2013.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.27,

eff. January 1, 2020.

Art. 102.008. FEES FOR SERVICES OF PROSECUTORS. (a) Repealed by Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Section 1.19(4), eff. January 1, 2020.

(b) No fee for the trying of a case may be charged against a defendant prosecuted in a justice court for violation of a penal statute or of the Uniform Act Regulating Traffic on Highways.

(c) Repealed by Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Section 1.19(4), eff. January 1, 2020.

(d) Repealed by Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Section 1.19(4), eff. January 1, 2020.

Added by Acts 1985, 69th Leg., ch. 269, Sec. 1, eff. Sept. 1, 1985. Sec. (a) amended by Acts 1989, 71st Leg., ch. 1080, Sec. 5, eff. Sept. 1, 1989.

Amended by:

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 1.19(4), eff. January 1, 2020.

Art. 102.011. REIMBURSEMENT FEES FOR SERVICES OF PEACE OFFICERS. (a) A defendant convicted of a felony or a misdemeanor shall pay the following reimbursement fees to defray the cost of the services provided in the case by a peace officer:

(1) \$5 for issuing a written notice to appear in court following the defendant's violation of a traffic law, municipal ordinance, or penal law of this state, or for making an arrest without a warrant;

(2) \$75 for executing or processing an issued arrest warrant, capias, or capias pro fine, with the fee imposed for the services of:

(A) the law enforcement agency that executed the arrest warrant or capias, if the agency requests of the court, not later than the 15th day after the date of the execution of the arrest warrant or capias, the imposition of the fee on conviction; or

(B) the law enforcement agency that processed the arrest warrant or capias, if:

(i) the arrest warrant or capias was not executed; or

(ii) the executing law enforcement agency failed to request the fee within the period required by Paragraph (A);

(3) \$5 for summoning a witness;

(4) \$35 for serving a writ not otherwise listed in this article;

(5) \$10 for taking and approving a bond and, if necessary, returning the bond to the courthouse;

(6) \$5 for commitment or release;

(7) \$5 for summoning a jury, if a jury is summoned; and

(8) \$8 for each day's attendance of a prisoner in a habeas corpus case if the prisoner has been remanded to custody or held to bail.

(b) In addition to the reimbursement fees provided by Subsection (a), a defendant required to pay reimbursement fees under this article shall also pay 29 cents per mile for mileage required of an officer to perform a service listed in this subsection and to return from performing that service. If the service provided is the execution of a writ and the writ is directed to two or more persons or the officer executes more than one writ in a case, the defendant is required to pay only mileage actually and necessarily traveled. In calculating mileage, the officer must use the railroad or the most practical route by private conveyance. The defendant shall also pay all necessary and reasonable expenses for meals and lodging incurred by the officer in the performance of services under this subsection, to the extent such expenses meet the requirements of Section [611.001](#), Government Code. This subsection applies to:

(1) conveying a prisoner after conviction to the county jail;

(2) conveying a prisoner arrested on a warrant or capias issued in another county to the court or jail of the county; and

(3) traveling to execute criminal process, to summon or attach a witness, and to execute process not otherwise described

by this article.

(c) If an officer attaches a witness on the order of a court outside the county, the defendant shall pay a reimbursement fee of \$10 per day or part of a day spent by the officer conveying the witness and actual necessary expenses for travel by the most practical public conveyance. In order to receive expenses under this subsection, the officer must make a sworn statement of the expenses and the judge issuing the attachment must approve the statement.

(d) A defendant shall pay for the services of a sheriff or constable who serves process and attends an examining trial in a felony or a misdemeanor case the same reimbursement fees allowed for those services in the trial of a felony or a misdemeanor, not to exceed \$5.

(e) A reimbursement fee under Subsection (a)(1) or (2) shall be assessed on conviction, regardless of whether the defendant was also arrested at the same time for another offense, and shall be assessed for each arrest made of a defendant arising out of the offense for which the defendant has been convicted.

(i) In addition to reimbursement fees provided by Subsections (a) through (e), a defendant required to pay reimbursement fees under this article shall also pay the costs of overtime paid to a peace officer for time spent testifying in the trial of the case or for traveling to or from testifying in the trial of the case.

(j) Repealed by Acts 2021, 87th Leg., R.S., Ch. 919 (S.B. [1923](#)), Sec. 21, eff. September 1, 2021.

Added by Acts 1987, 70th Leg., ch. 821, Sec. 2, eff. Sept. 1, 1987. Subsecs. (a), (e), (f), amended by Acts 1989, 71st Leg., ch. 826, Sec. 1, eff. Sept. 1, 1989; Subsec. (a) amended by Acts 1991, 72nd Leg., ch. 575, Sec. 1, eff. Sept. 1, 1991; Subsecs. (a), (d) amended by Acts 1993, 73rd Leg., ch. 988, Sec. 2.04(a), eff. Sept. 1, 1993; Subsec. (b) amended by Acts 1995, 74th Leg., ch. 560, Sec. 1, eff. Sept. 1, 1995; Subsec. (i) added by Acts 1995, 74th Leg., ch. 267, Sec. 1, eff. Sept. 1, 1995; Subsec. (a) amended by Acts 1999, 76th Leg., ch. 44, Sec. 1, eff. Sept. 1, 1999; Subsecs. (f) to (h) repealed by by Acts 2003, 78th Leg., ch. 209, Sec. 85(a)(5),

eff. Jan. 1, 2004; Subsec. (j) added by Acts 2003, 78th Leg., ch. 209, Sec. 68(a), eff. Jan. 1, 2004.

Amended by:

Acts 2007, 80th Leg., R.S., Ch. 1263 (H.B. [3060](#)), Sec. 20, eff. September 1, 2007.

Acts 2007, 80th Leg., R.S., Ch. 1263 (H.B. [3060](#)), Sec. 21, eff. September 1, 2007.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.28, eff. January 1, 2020.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.29, eff. January 1, 2020.

Acts 2021, 87th Leg., R.S., Ch. 919 (S.B. [1923](#)), Sec. 4, eff. September 1, 2021.

Acts 2021, 87th Leg., R.S., Ch. 919 (S.B. [1923](#)), Sec. 21, eff. September 1, 2021.

Acts 2025, 89th Leg., R.S., Ch. 584 (H.B. [2282](#)), Sec. 1, eff. September 1, 2025.

Art. 102.012. REIMBURSEMENT FEES FOR PRETRIAL INTERVENTION PROGRAMS. (a) A court that authorizes a defendant to participate in a pretrial intervention program established under Section [76.011](#), Government Code, may order the defendant to pay to the court a supervision reimbursement fee in an amount not more than \$60 per month as a condition of participating in the program.

(b) In addition to or in lieu of the supervision reimbursement fee authorized by Subsection (a), the court may order the defendant to pay or reimburse a community supervision and corrections department for any other expense that is:

(1) incurred as a result of the defendant's participation in the pretrial intervention program, other than an expense described by Article [102.0121](#); or

(2) necessary to the defendant's successful completion of the program.

Added by Acts 1990, 71st Leg., 6th C.S., ch. 25, Sec. 20, eff. June 18, 1990. Amended by Acts 1995, 74th Leg., ch. 76, Sec. 7.16, eff. Sept. 1, 1995.

Amended by:

Acts 2005, 79th Leg., Ch. 91 (S.B. [1006](#)), Sec. 2, eff. September 1, 2005.

Acts 2007, 80th Leg., R.S., Ch. 1226 (H.B. [2385](#)), Sec. 1, eff. September 1, 2007.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.30, eff. January 1, 2020.

Art. 102.0121. REIMBURSEMENT FEES FOR CERTAIN EXPENSES RELATED TO PRETRIAL INTERVENTION PROGRAMS. (a) A district attorney, criminal district attorney, or county attorney may collect a reimbursement fee in an amount not to exceed \$500 to be used to reimburse a county for expenses, including expenses of the district attorney's, criminal district attorney's, or county attorney's office, related to a defendant's participation in a pretrial intervention program offered in that county.

(b) The district attorney, criminal district attorney, or county attorney may collect the reimbursement fee from any defendant who participates in a pretrial intervention program administered in any part by the attorney's office.

(c) Reimbursement fees collected under this article shall be deposited in the county treasury in a special fund to be used solely to administer the pretrial intervention program. An expenditure from the fund may be made only in accordance with a budget approved by the commissioners court.

Added by Acts 2007, 80th Leg., R.S., Ch. 1226 (H.B. [2385](#)), Sec. 2, eff. September 1, 2007.

Amended by:

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.31, eff. January 1, 2020.

Art. 102.013. COURT COSTS; CRIME STOPPERS ASSISTANCE ACCOUNT. (a) The legislature shall appropriate funds from the crime stoppers assistance account to the Criminal Justice Division of the Governor's Office. The Criminal Justice Division may use 10 percent of the funds for the operation of the free statewide telephone service or other appropriate systems for the reporting of crime under Section [414.012](#), Government Code, and shall distribute

the remainder of the funds only to crime stoppers organizations. The Criminal Justice Division may adopt a budget and rules to implement the distribution of these funds.

(b) All funds distributed by the Criminal Justice Division under Subsection (a) of this article are subject to audit by the state auditor. All funds collected or distributed are subject to audit by the Governor's Division of Planning Coordination.

(c) In this article, "crime stoppers organization" has the meaning assigned by Section [414.001](#), Government Code.

Added by Acts 1990, 71st Leg., 6th C.S., ch. 28, Sec. 1, eff. Sept. 6, 1990. Renumbered from art. 102.012 by Acts 1991, 72nd Leg., ch. 16, Sec. 19.01(7), eff. Aug. 26, 1991. Subsec. (e) amended by Acts 1991, 72nd Leg., ch. 727, Sec. 2, eff. Sept. 1, 1991; Subsec. (g) amended by Acts 1993, 73rd Leg., ch. 807, Sec. 2, eff. Aug. 30, 1993; Subsecs. (g), (i) amended by Acts 1997, 75th Leg., ch. 700, Sec. 13, eff. Sept. 1, 1997. Amended by Acts 1997, 75th Leg., ch. 1100, Sec. 1, eff. Sept. 1, 1997.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 707 (H.B. [3690](#)), Sec. 3, eff. September 1, 2017.

Art. 102.014. FINES FOR CHILD SAFETY FUND. (a) The governing body of a municipality with a population greater than 1.3 million according to the most recent federal decennial census that has adopted an ordinance, regulation, or order regulating the stopping, standing, or parking of vehicles as allowed by Section [542.202](#), Transportation Code, or Chapter [682](#), Transportation Code, shall by order assess on each parking violation a fine of not less than \$2 and not to exceed \$5.

(b) The governing body of a municipality with a population less than 1.3 million according to the most recent federal decennial census that has adopted an ordinance, regulation, or order regulating the stopping, standing, or parking of vehicles as allowed by Section [542.202](#), Transportation Code, or Chapter [682](#), Transportation Code, may by order assess on each parking violation a fine not to exceed \$5.

(c) A person convicted of an offense under Subtitle C, Title

7, Transportation Code, when the offense occurs within a school crossing zone as defined by Section 541.302 of that code, shall pay a fine of \$25. A person convicted of an offense under Section 545.066, Transportation Code, shall pay a fine of \$25 in addition to other taxable court costs. A fine under this subsection shall be assessed only in a municipality.

(d) A person convicted of an offense under Section 25.093, Education Code, shall pay a fine of \$20.

(e) Repealed by Acts 2021, 87th Leg., R.S., Ch. 919 (S.B. 1923), Sec. 21, eff. September 1, 2021.

(f) In a municipality with a population greater than 1.3 million according to the most recent federal decennial census, the officer collecting a fine in a municipal court case shall deposit money collected under this article in the municipal child safety trust fund established as required by Chapter 106, Local Government Code.

(g) In a municipality with a population less than 1.3 million according to the most recent federal decennial census, the money collected under this article in a municipal court case must be used for a school crossing guard program if the municipality operates one. If the municipality does not operate a school crossing guard program or if the money received from fines from municipal court cases exceeds the amount necessary to fund the school crossing guard program, the municipality may:

(1) deposit the additional money in an interest-bearing account;

(2) expend the additional money for programs designed to enhance child safety, health, or nutrition, including child abuse prevention and intervention, youth diversion, and drug and alcohol abuse prevention; or

(3) expend the additional money for programs designed to enhance public safety and security.

(h) Money collected under this article in a justice, county, or district court shall be used to fund school crossing guard programs in the county where they are collected. If the county does not operate a school crossing guard program, the county may:

(1) remit fine revenues to school districts in its

jurisdiction for the purpose of providing school crossing guard services;

(2) fund programs the county is authorized by law to provide which are designed to enhance child safety, health, or nutrition, including child abuse prevention and intervention, youth diversion, and drug and alcohol abuse prevention;

(3) provide funding to the sheriff's department for school-related activities;

(4) provide funding to the county juvenile probation department; or

(5) deposit the money in the general fund of the county.

(i) Each collecting officer shall keep separate records of money collected under this article.

Added by Acts 1991, 72nd Leg., ch. 830, Sec. 2, eff. July 1, 1991. Subsec. (e) amended by Acts 1995, 74th Leg., ch. 76, Sec. 10.03, eff. Sept. 1, 1995; Subsec. (c) amended by Acts 1997, 75th Leg., ch. 50, Sec. 1, eff. Sept. 1, 1997; amended by Acts 1997, 75th Leg., ch. 165, Sec. 6.05, eff. Sept. 1, 1997. Amended by Acts 1997, 75th Leg., ch. 1384, Sec. 1, eff. Sept. 1, 1997; Subsec. (c) amended by Acts 2001, 77th Leg., ch. 983, Sec. 1; Subsec. (d) amended by Acts 2001, 77th Leg., ch. 1514, Sec. 10, eff. Sept. 1, 2001; Subsec. (e) amended by Acts 2003, 78th Leg., ch. 209, Sec. 69(a), eff. Jan. 1, 2004.

Amended by:

Acts 2009, 81st Leg., R.S., Ch. 162 (S.B. [446](#)), Sec. 1, eff. May 26, 2009.

Acts 2015, 84th Leg., R.S., Ch. 935 (H.B. [2398](#)), Sec. 5, eff. September 1, 2015.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.32, eff. January 1, 2020.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.33, eff. January 1, 2020.

Acts 2021, 87th Leg., R.S., Ch. 919 (S.B. [1923](#)), Sec. 21, eff. September 1, 2021.

Acts 2023, 88th Leg., R.S., Ch. 525 (H.B. [3186](#)), Sec. 9, eff. January 1, 2024.

Acts 2023, 88th Leg., R.S., Ch. 525 (H.B. [3186](#)), Sec. 10, eff. January 1, 2024.

Acts 2023, 88th Leg., R.S., Ch. 644 (H.B. [4559](#)), Sec. 14, eff. September 1, 2023.

Art. 102.016. COSTS FOR BREATH ALCOHOL TESTING PROGRAM. (a) The custodians of municipal and county treasuries may deposit funds collected under this article in interest-bearing accounts and retain for the municipality or county interest earned on the funds. The custodians shall keep records of funds received and disbursed under this article and shall provide a yearly report of all funds received and disbursed under this article to the comptroller, the Department of Public Safety, and to each agency in the county served by the court that participates in or maintains a certified breath alcohol testing program. The comptroller shall approve the form of the report.

(b) The custodian of a municipal or county treasury in a county that maintains a certified breath alcohol testing program but does not use the services of a certified technical supervisor employed by the department may, to defray the costs of maintaining and supporting a certified breath alcohol testing program, retain \$22.50 of each court cost collected under Section [133.102](#), Local Government Code, on conviction of an offense under Chapter [49](#), Penal Code, other than an offense that is a Class C misdemeanor.

(c) The legislature may appropriate money deposited to the credit of the breath alcohol testing account in the general revenue fund under this subsection to the Department of Public Safety for use by the department in the implementation, administration, and maintenance of the statewide certified breath alcohol testing program.

(d) The Department of Public Safety shall maintain a list of counties that do not use the services of a certified technical supervisor employed by the department.

Added by Acts 1991, 72nd Leg., 1st C.S., ch. 5, Sec. 5.03(a), eff. Sept. 1, 1991. Subsec. (a) amended by Acts 1993, 73rd Leg., ch. 900, Sec. 3.03, eff. Sept. 1, 1994. Amended by Acts 1997, 75th Leg., ch. 1100, Sec. 2, eff. Sept. 1, 1997.

Amended by:

Acts 2009, 81st Leg., R.S., Ch. 1204 (S.B. 333), Sec. 1, eff. September 1, 2009.

Art. 102.0169. COUNTY AND DISTRICT COURT TECHNOLOGY FUND.

(a) The county and district court technology fund is a fund in the county treasury. The fund consists of money allocated to the fund under Sections 134.101 and 134.102, Local Government Code.

(b) Money in the county and district court technology fund may be used only to finance:

(1) the cost of continuing education and training for county court, statutory county court, or district court judges and clerks regarding technological enhancements for those courts; and

(2) the purchase and maintenance of technological enhancements for a county court, statutory county court, or district court, including:

- (A) computer systems;
- (B) computer networks;
- (C) computer hardware;
- (D) computer software;
- (E) imaging systems;
- (F) electronic kiosks; and
- (G) docket management systems.

(c) The county and district court technology fund shall be administered by or under the direction of the commissioners court of the county.

Added by Acts 2009, 81st Leg., R.S., Ch. 1183 (H.B. 3637), Sec. 1, eff. September 1, 2009.

Amended by:

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 1.07, eff. January 1, 2020.

Art. 102.017. COURTHOUSE SECURITY FUND; MUNICIPAL COURT BUILDING SECURITY FUND; JUSTICE COURT BUILDING SECURITY FUND.

(a) The courthouse security fund is a fund in the county treasury, and, except as provided in Subsection (g), the municipal court building security fund is a fund in the municipal treasury. The

funds consist of money allocated to the funds under Sections [134.101](#), [134.102](#), [134.103](#), [135.101](#), and [135.102](#), Local Government Code.

(b) Money deposited in a courthouse security fund may be used only for security personnel, services, and items related to buildings that house the operations of district, county, or justice courts, and money deposited in a municipal court building security fund may be used only for security personnel, services, and items related to buildings that house the operations of municipal courts. For purposes of this subsection, operations of a district, county, or justice court include the activities of associate judges, masters, magistrates, referees, hearing officers, criminal law magistrate court judges, and masters in chancery appointed under:

- (1) Section 61.311, Alcoholic Beverage Code;
- (2) Section [51.04](#)(g) or Chapter [201](#), Family Code;
- (3) Section [574.0085](#), Health and Safety Code;
- (4) Section [33.71](#), Tax Code;
- (5) Chapter [54A](#), Government Code; or
- (6) Rule 171, Texas Rules of Civil Procedure.

(c) For purposes of this article, the term "security personnel, services, and items" includes:

- (1) the purchase or repair of X-ray machines and conveying systems;
- (2) handheld metal detectors;
- (3) walkthrough metal detectors;
- (4) identification cards and systems;
- (5) electronic locking and surveillance equipment;
- (6) video teleconferencing systems;
- (7) bailiffs, deputy sheriffs, deputy constables, or contract security personnel during times when they are providing appropriate security services;
- (8) signage;
- (9) confiscated weapon inventory and tracking systems;
- (10) locks, chains, alarms, or similar security devices;
- (11) the purchase or repair of bullet-proof glass;

(12) continuing education on security issues for court personnel and security personnel; and

(13) warrant officers and related equipment.

(d) This subsection applies only to a justice court located in a county in which one or more justice courts are located in a building that is not the county courthouse. The county treasurer shall deposit one-fourth of the money allocated to the courthouse security fund under Section 134.103, Local Government Code, in a fund to be known as the justice court building security fund. A fund designated by this subsection may be used only for the purpose of providing security personnel, services, and items for a justice court located in a building that is not the county courthouse.

(e) The courthouse security fund and the justice court building security fund shall be administered by or under the direction of the commissioners court. The municipal court building security fund shall be administered by or under the direction of the governing body of the municipality.

(e-1) In administering or directing funds under Subsection (e), a commissioners court shall consider the recommendations provided by a court security committee under Section 74.0922, Government Code, and the governing body of a municipality shall consider the recommendations provided by a court security committee under Sections 29.014(d) and 30.00007(c), Government Code.

(f) The sheriff, constable, or other law enforcement agency or entity that provides security for a court shall provide to the Office of Court Administration of the Texas Judicial System a written report regarding any security incident involving court security that occurs in or around a building housing a court for which the sheriff, constable, agency, or entity provides security not later than the third business day after the date the incident occurred. A copy of the report must be provided to the presiding judge of the court in which the incident occurred. The report is confidential and exempt from disclosure under Chapter 552, Government Code.

(g) This section does not apply to a municipality with a population of less than 100,000.

Added by Acts 1993, 73rd Leg., ch. 818, Sec. 1, eff. Sept. 1, 1993.

Amended by Acts 1995, 74th Leg., ch. 764, Sec. 2, eff. Aug. 28, 1995; Subsecs. (a), (b), (d) amended by Acts 1997, 75th Leg., ch. 12, Sec. 1, eff. Sept. 1, 1997; Subsec. (d) amended by Acts 1999, 76th Leg., ch. 110, Sec. 1, eff. May 17, 1999.

Amended by:

Acts 2005, 79th Leg., Ch. 83 (S.B. [550](#)), Sec. 2, eff. September 1, 2005.

Acts 2005, 79th Leg., Ch. 1087 (H.B. [1934](#)), Sec. 2, eff. September 1, 2005.

Acts 2007, 80th Leg., R.S., Ch. 221 (H.B. [1380](#)), Sec. 1, eff. September 1, 2007.

Acts 2011, 82nd Leg., R.S., Ch. 664 (S.B. [1521](#)), Sec. 1, eff. June 17, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 1031 (H.B. [2847](#)), Sec. 7, eff. September 1, 2011.

Acts 2011, 82nd Leg., 1st C.S., Ch. 3 (H.B. [79](#)), Sec. 6.07, eff. January 1, 2012.

Acts 2013, 83rd Leg., R.S., Ch. 161 (S.B. [1093](#)), Sec. 3.012, eff. September 1, 2013.

Acts 2017, 85th Leg., R.S., Ch. 190 (S.B. [42](#)), Sec. 2, eff. September 1, 2017.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 1.08, eff. January 1, 2020.

Acts 2021, 87th Leg., R.S., Ch. 472 (S.B. [41](#)), Sec. 4.02, eff. January 1, 2022.

Acts 2025, 89th Leg., R.S., Ch. 267 (H.B. [1950](#)), Sec. 1, eff. May 29, 2025.

Acts 2025, 89th Leg., 2nd C.S., Ch. 7 (H.B. [16](#)), Sec. 7.03, eff. December 4, 2025.

Art. 102.0171. FINES: JUVENILE DELINQUENCY PREVENTION FUNDS. (a) A defendant convicted of an offense under Section [28.08](#), Penal Code, in a municipal court, justice court, county court, county court at law, or district court shall pay a fine of \$50 for juvenile delinquency prevention and graffiti eradication.

(b) In this article, a person is considered convicted if:

(1) a sentence is imposed on the person;

(2) the person receives community supervision, including deferred adjudication; or

(3) the court defers final disposition of the person's case.

(c) The clerks of the respective courts shall collect the fines and pay the fines to the county treasurer, municipal treasurer, or to any other official who discharges the duties commonly delegated to the county or municipal treasurer for deposit in a fund to be known as the county juvenile delinquency prevention fund or municipal juvenile delinquency prevention fund. A fund designated by this subsection may be used only to:

(1) repair damage caused by the commission of offenses under Section 28.08, Penal Code;

(2) provide educational and intervention programs and materials, including printed educational materials for distribution to primary and secondary school students, designed to prevent individuals from committing offenses under Section 28.08, Penal Code;

(3) provide to the public rewards for identifying and aiding in the apprehension and prosecution of offenders who commit offenses under Section 28.08, Penal Code;

(4) provide funding for teen recognition and teen recreation programs;

(5) provide funding for local teen court programs;

(6) provide funding for the local juvenile probation department;

(7) provide educational and intervention programs designed to prevent juveniles from engaging in delinquent conduct; and

(8) provide funding for youth diversion under Subchapter K, Chapter 45A.

(d) The county juvenile delinquency prevention fund shall be administered by or under the direction of the commissioners court.

(e) The municipal juvenile delinquency prevention fund shall be administered by or under the direction of the governing body of a municipality.

Added by Acts 1997, 75th Leg., ch. 593, Sec. 2, eff. Sept. 1, 1997.

Section heading amended by Acts 2003, 78th Leg., ch. 601, Sec. 1, eff. Sept. 1, 2003; Subsecs. (c) and (d) amended by Acts 2003, 78th Leg., ch. 601, Sec. 2, eff. Sept. 1, 2003.

Amended by:

Acts 2007, 80th Leg., R.S., Ch. 1053 (H.B. [2151](#)), Sec. 3, eff. September 1, 2007.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.34, eff. January 1, 2020.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.35, eff. January 1, 2020.

Acts 2023, 88th Leg., R.S., Ch. 525 (H.B. [3186](#)), Sec. 11, eff. January 1, 2024.

Acts 2025, 89th Leg., R.S., Ch. 204 (H.B. [1620](#)), Sec. 5.032, eff. September 1, 2025.

Art. 102.0172. MUNICIPAL COURT TECHNOLOGY FUND. (a) Except as provided by Subsection (d), the municipal court technology fund is a fund in the municipal treasury. The fund consists of money allocated to the fund under Section [134.103](#), Local Government Code.

(b) Money in a municipal court technology fund may be used only to finance the purchase of or to maintain technological enhancements for a municipal court or municipal court of record, including:

- (1) computer systems;
- (2) computer networks;
- (3) computer hardware;
- (4) computer software;
- (5) imaging systems;
- (6) electronic kiosks;
- (7) electronic ticket writers; and
- (8) docket management systems.

(c) The municipal court technology fund shall be administered by or under the direction of the governing body of the municipality.

(d) This section does not apply to a municipality with a population of less than 100,000.

Added by Acts 1999, 76th Leg., ch. 285, Sec. 1, eff. Sept. 1, 1999; Subsec. (d) amended by Acts 2003, 78th Leg., ch. 502, Sec. 1, eff. Sept. 1, 2003; Subsec. (f) repealed by Acts 2003, 78th Leg., ch. 502, Sec. 2, eff. Sept. 1, 2003.

Amended by:

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 1.09, eff. January 1, 2020.

Acts 2025, 89th Leg., R.S., Ch. 267 (H.B. 1950), Sec. 2, eff. May 29, 2025.

Art. 102.0173. JUSTICE COURT ASSISTANCE AND TECHNOLOGY FUND. (a) The justice court assistance and technology fund is a fund in the county treasury. The fund consists of money allocated to the fund under Section 134.103, Local Government Code.

(b) Money in the justice court assistance and technology fund may be used only to finance:

(1) the cost of providing court personnel, including salaries and benefits for the court personnel;

(2) the cost of continuing education and training for justice court judges and court personnel; and

(3) the purchase and maintenance of technological enhancements for a justice court, including:

- (A) computer systems;
- (B) computer networks;
- (C) computer hardware;
- (D) computer software;
- (E) imaging systems;
- (F) electronic kiosks;
- (G) electronic ticket writers; and
- (H) docket management systems.

(c) The justice court assistance and technology fund shall be administered by or under the direction of the commissioners court of the county.

(d) A justice court may, subject to the approval of the commissioners court, use a fund designated by this article to assist a constable's office or other county department with a technological enhancement, or cost related to the enhancement,

described by Subsection (b)(3) if the enhancement directly relates to the operation or efficiency of the justice court.

Added by Acts 2001, 77th Leg., ch. 977, Sec. 1, eff. Sept. 1, 2001.

Amended by:

Acts 2005, 79th Leg., Ch. 240 (H.B. 1418), Sec. 1, eff. September 1, 2005.

Acts 2005, 79th Leg., Ch. 240 (H.B. 1418), Sec. 3, eff. September 1, 2005.

Acts 2013, 83rd Leg., R.S., Ch. 304 (H.B. 1448), Sec. 1, eff. September 1, 2013.

Acts 2019, 86th Leg., R.S., Ch. 656 (S.B. 1840), Sec. 2, eff. September 1, 2019.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 1.10, eff. January 1, 2020.

Reenacted and amended by Acts 2021, 87th Leg., R.S., Ch. 915 (H.B. 3607), Sec. 4.018, eff. September 1, 2021.

Art. 102.0175. CONSOLIDATED MUNICIPAL COURT BUILDING SECURITY AND TECHNOLOGY FUND. (a) This section applies only to a municipality with a population of less than 100,000.

(b) The consolidated municipal court building security and technology fund is a fund in the municipal court treasury. The fund consists of money allocated to the fund under Section 134.103, Local Government Code.

(c) Money deposited in a consolidated municipal court building security and technology fund may be used only for the purposed authorized under:

(1) Article 102.017(b) or (c) for use of a municipal court technology fund; or

(2) Article 102.0172(b) for use of a municipal court technology fund.

(d) The consolidated municipal court building security and technology fund shall be administered by or under the direction of the governing body of the municipality.

Added by Acts 2025, 89th Leg., R.S., Ch. 267 (H.B. 1950), Sec. 3, eff. May 29, 2025.

Art. 102.0179. FINE FOR CERTAIN DRUG AND TEXAS CONTROLLED SUBSTANCE ACT CONVICTIONS. In this article, "convicted" includes an adjudication under juvenile proceedings.

(b) In addition to any other fees and fines imposed under this subchapter, a defendant convicted of a misdemeanor drug offense as defined by Section 521.371, Transportation Code, whose driver's license is not suspended under Section 521.372, Transportation Code, as a result of that conviction, shall pay a fine of \$100.

(c) The court shall waive imposition of a fine under this article if the defendant's driver's license is suspended under Section 521.372, Transportation Code, or under another provision of that code as a result of the conviction of:

(1) an offense described by Section 521.372(a), Transportation Code; or

(2) another offense arising from the same criminal episode.

(d) A fine imposed under this article is due regardless of whether the defendant is granted community supervision in the case. The court shall collect the fine under this article in the same manner as court costs are collected in the case.

(e) A fine collected under this article shall be deposited to the credit of the Texas mobility fund.

Added by Acts 2021, 87th Leg., R.S., Ch. 543 (S.B. 181), Sec. 1.01, eff. Feb. 25, 2023.

Art. 102.018. REIMBURSEMENT FEES AND EXPENSES ATTENDANT TO INTOXICATION CONVICTIONS. (a) Except as provided by Subsection (d), on conviction of an offense relating to the driving or operating of a motor vehicle under Section 49.04, Penal Code, the court shall impose a reimbursement fee of \$15 on a defendant if, subsequent to the arrest of the defendant, a law enforcement agency visually recorded the defendant with an electronic device. Reimbursement fees imposed under this subsection are in addition to other court costs or fees and are due whether or not the defendant is granted probation in the case. The court shall collect the reimbursement fees in the same manner as other fees are

collected in the case.

(b) Except as provided by Subsection (d), on conviction of an offense relating to the driving or operating of a motor vehicle punishable under Section 49.04(b), Penal Code, the court shall impose as a reimbursement fee on the defendant an amount that is equal to the reimbursement fee of an evaluation of the defendant performed under Article 42A.402(a). Reimbursement fees imposed under this subsection are in addition to other court costs and are due whether or not the defendant is granted community supervision in the case, except that if the court determines that the defendant is indigent and unable to pay the fee, the court may waive the imposition of the fee.

(c)(1) Except as provided by Subsection (d) of this article, if a person commits an offense under Chapter 49, Penal Code, and as a direct result of the offense the person causes an incident resulting in an accident response by a public agency, the person is liable on conviction for the offense for the reasonable expense to the agency of the accident response.

(2) The liability authorized by this subsection may be established by civil suit; however, if a determination is made during a criminal trial that a person committed an offense under Chapter 49, Penal Code, and as a direct result of the offense the person caused an incident resulting in an accident response by a public agency, the court may include the obligation for the liability as part of the judgment. A judgment that includes such an obligation is enforceable as any other judgment.

(3) The liability is a debt of the person to the public agency, and the public agency may collect the debt in the same manner as the public agency collects an express or implied contractual obligation to the agency.

(4) A person's liability under this subsection for the reasonable expense of an accident response may not exceed \$1,000 for a particular incident. For the purposes of this subdivision, a reasonable expense for an accident response includes only those costs to the public agency arising directly from an accident response to a particular incident, such as the cost of providing police, fire-fighting, rescue, ambulance, and emergency medical

services at the scene of the incident and the salaries of the personnel of the public agency responding to the incident.

(5) A bill for the expense of an accident response sent to a person by a public agency under this subsection must contain an itemized accounting of the components of the total charge. A bill that complies with this subdivision is prima facie evidence of the reasonableness of the costs incurred in the accident response to which the bill applies.

(6) A policy of motor vehicle insurance delivered, issued for delivery, or renewed in this state may not cover payment of expenses charged to a person under this subsection.

(7) In this subsection, "public agency" means the state, a county, a municipality district, or a public authority located in whole or in part in this state that provides police, fire-fighting, rescue, ambulance, or emergency medical services.

(d) Subsections (a), (b), and (c) of this article do not apply to an offense under Section [49.02](#) or 49.03, Penal Code.

Added by Acts 1993, 73rd Leg., ch. 900, Sec. 1.07, eff. Sept. 1, 1994. Renumbered from art. 102.017 by Acts 1995, 74th Leg., ch. 76, Sec. 17.01(4), eff. Sept. 1, 1995.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 770 (H.B. [2299](#)), Sec. 2.28, eff. January 1, 2017.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.36, eff. January 1, 2020.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.37, eff. January 1, 2020.

Acts 2021, 87th Leg., R.S., Ch. 919 (S.B. [1923](#)), Sec. 5, eff. September 1, 2021.

Art. 102.0185. FINE FOR INTOXICATION CONVICTIONS: EMERGENCY MEDICAL SERVICES, TRAUMA FACILITIES, AND TRAUMA CARE SYSTEMS. (a) In addition to the reimbursement fee imposed by Article [102.018](#), a person convicted of an offense under Chapter [49](#), Penal Code, except for Sections [49.02](#) and 49.031 of that code, shall pay a fine of \$100 on conviction of the offense.

(b) Fines imposed under this article are imposed without

regard to whether the defendant is placed on community supervision after being convicted of the offense or receives deferred disposition or deferred adjudication for the offense.

(c) Fines imposed under this article are collected in the manner provided for the collection of court costs by Subchapter B, Chapter 133, Local Government Code.

(d) The officer collecting the fines under this article shall keep separate records of the money collected and shall pay the money to the custodian of the municipal or county treasury.

(e) The custodian of the municipal or county treasury shall:

(1) keep records of the amount of money collected under this article that is deposited with the treasury under this article; and

(2) not later than the last day of the first month following each calendar quarter:

(A) pay the money collected under this article during the preceding calendar quarter to the comptroller; or

(B) if, in the calendar quarter, the custodian of the municipal or county treasury did not receive any money attributable to fines paid under this article, file a report with the comptroller stating that fact.

(f) The comptroller shall deposit the funds received under this article to the credit of the account established under Section 773.006, Health and Safety Code.

Added by Acts 2003, 78th Leg., ch. 1213, Sec. 4, eff. Sept. 1, 2003.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 91 (S.B. 1303), Sec. 6.007, eff. September 1, 2011.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 2.38, eff. January 1, 2020.

Art. 102.0186. FINE FOR CERTAIN CHILD SEXUAL ASSAULT AND RELATED CONVICTIONS. (a) A person convicted of an offense under Section 21.02, 21.11, 22.011(a)(2), 22.021(a)(1)(B), 43.25, 43.251, or 43.26, Penal Code, shall pay a fine of \$100 on conviction of the offense.

(b) A fine imposed under this article is imposed without

regard to whether the defendant is placed on community supervision after being convicted of the offense or receives deferred adjudication for the offense.

(c) The clerks of the respective courts shall collect the fines and pay the fines to the county treasurer or to any other official who discharges the duties commonly delegated to the county treasurer for deposit in a fund to be known as the county child abuse prevention fund. A fund designated by this subsection may be used only to fund child abuse prevention programs in the county where the court is located.

(d) The county child abuse prevention fund shall be administered by or under the direction of the commissioners court. Added by Acts 2005, 79th Leg., Ch. 268 (S.B. 6), Sec. 1.127(a), eff. September 1, 2005.

Amended by:

Acts 2007, 80th Leg., R.S., Ch. 593 (H.B. 8), Sec. 3.24, eff. September 1, 2007.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 2.39, eff. January 1, 2020.

Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. 346), Sec. 2.40, eff. January 1, 2020.

Art. 102.030. TIME PAYMENT REIMBURSEMENT FEE. (a) A person convicted of an offense shall pay a reimbursement fee of \$15 if the person:

(1) has been convicted of a felony or misdemeanor; and
(2) pays any part of a fine, court costs, or restitution, or another reimbursement fee, on or after the 31st day after the date on which a judgment is entered assessing the fine, court costs, restitution, or other reimbursement fee.

(b) The treasurer shall deposit the reimbursement fees collected under this article in a separate account in the general fund of the county or municipality to be used for the purpose of improving the collection of outstanding court costs, fines, reimbursement fees, or restitution or improving the efficiency of the administration of justice in the county or municipality. The county or municipality shall prioritize the needs of the judicial

officer who collected the fees when making expenditures under this subsection and use the money deposited to provide for those needs. Added by Acts 2003, 78th Leg., ch. 209, Sec. 62(a), eff. Jan. 1, 2004.

Amended by:

Acts 2005, 79th Leg., Ch. 899 (S.B. [1863](#)), Sec. 10.03, eff. August 29, 2005.

Acts 2011, 82nd Leg., R.S., Ch. 1171 (H.B. [2949](#)), Sec. 3, eff. September 1, 2011.

Acts 2011, 82nd Leg., 1st C.S., Ch. 4 (S.B. [1](#)), Sec. 41.03, eff. September 28, 2011.

Acts 2013, 83rd Leg., R.S., Ch. 460 (S.B. [967](#)), Sec. 2, eff. June 14, 2013.

Acts 2019, 86th Leg., R.S., Ch. 606 (S.B. [891](#)), Sec. [15.04](#)(2), eff. September 1, 2019.

Transferred, redesignated and amended from Local Government Code, Section 133.103 by Acts 2019, 86th Leg., R.S., Ch. 1352 (S.B. [346](#)), Sec. 2.54, eff. January 1, 2020.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 915 (H.B. [3607](#)), Sec. 4.021, eff. September 1, 2021.

SUBCHAPTER B. CRIMINAL JUSTICE PLANNING FUND

Art. 102.056. DISTRIBUTION OF FUNDS. (a) The legislature shall determine and appropriate the necessary amount from the criminal justice planning fund to the criminal justice division of the governor's office for expenditure for state and local criminal justice projects and for costs of administering the funds for the projects. The criminal justice division shall allocate not less than 20 percent of these funds to juvenile justice programs. The distribution of the funds to local units of government shall be in an amount equal at least to the same percentage as local expenditures for criminal justice activities are to total state and local expenditures for criminal justice activities for the preceding state fiscal year. Funds shall be allocated among combinations of local units of government taking into consideration

the population of the combination of local units of government as compared to the population of the state and the incidence of crime in the jurisdiction of the combination of local units of government as compared to the incidence of crime in the state. All funds collected are subject to audit by the comptroller of public accounts. All funds expended are subject to audit by the State Auditor. All funds collected or expended are subject to audit by the governor's division of planning coordination.

(b) The legislature may appropriate any unobligated balance of the criminal justice planning fund for any court-related purpose.

(c) Notwithstanding any other provision of this article, the criminal justice division shall allocate to a local unit of government or combination of local units of government located in an impacted region occurring as the result of the establishment of a significant new naval military facility an amount that exceeds by 10 percent the amount it would otherwise receive under this article.

(d) In this article, "significant new naval military facility" and "impacted region" have the meanings assigned by Section 4, Article 1, National Defense Impacted Region Assistance Act of 1985.

(e) The legislature shall determine and appropriate the necessary amount from the criminal justice planning account to the criminal justice division of the governor's office for reimbursement in the form of grants to the Department of Public Safety of the State of Texas and other law enforcement agencies for expenses incurred in performing duties imposed on those agencies under Section [411.1471](#) or Subchapter [B-1](#), Chapter [420](#), Government Code, as applicable. On the first day after the end of a calendar quarter, a law enforcement agency incurring expenses described by this subsection in the previous calendar quarter shall send a certified statement of the costs incurred to the criminal justice division. The criminal justice division through a grant shall reimburse the law enforcement agency for the costs not later than the 30th day after the date the certified statement is received. If the criminal justice division does not reimburse the

law enforcement agency before the 90th day after the date the certified statement is received, the agency is not required to perform duties imposed under Section [411.1471](#) or Subchapter [B-1](#), Chapter [420](#), Government Code, as applicable, until the agency has been compensated for all costs for which the agency has submitted a certified statement under this subsection.

Added by Acts 1985, 69th Leg., ch. 269, Sec. 1, eff. Sept. 1, 1985.
Subsec. (b) amended by Acts 1986, 69th Leg., 2nd C.S., ch. 11, Sec. 8, eff. Sept. 22, 1986; Subsecs. (c) and (d) added by Acts 1991, 72nd Leg., ch. 16, Sec. 4.07(a), eff. Aug. 26, 1991; Subsec. (e) added by Acts 2001, 77th Leg., ch. 1490, Sec. 7, eff. Sept. 1, 2001.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 91 (S.B. [1303](#)), Sec. 6.008, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 1105 (S.B. [1636](#)), Sec. 13, eff. September 1, 2011.

SUBCHAPTER C. COURT COSTS AND FEES

Art. 102.071. COLLECTION, ALLOCATION, AND ADMINISTRATION.
The comptroller of public accounts may require state court costs and fees in criminal cases to be reported in lump-sum amounts. The comptroller shall allocate the amounts received to the appropriate fund, with each fund receiving the same amount of money the fund would have received if the costs and fees had been reported individually.

Added by Acts 1989, 71st Leg., ch. 347, Sec. 4, eff. Oct. 1, 1989.

Art. 102.072. ADMINISTRATIVE FEE. An officer listed in Article [103.003](#) or a community supervision and corrections department may assess an administrative fee for each transaction made by the officer or department relating to the collection of fines, fees, restitution, or other costs imposed by a court. The fee may not exceed \$2 for each transaction. This article does not apply to a transaction relating to the collection of child support.

Added by Acts 1995, 74th Leg., ch. 217, Sec. 2, eff. May 23, 1995.

Amended by Acts 1999, 76th Leg., ch. 1345, Sec. 1, eff. Sept. 1,

1999.

Art. 102.073. ASSESSMENT OF COURT COSTS AND FEES IN A SINGLE CRIMINAL ACTION. (a) In a single criminal action in which a defendant is convicted of two or more offenses or of multiple counts of the same offense, the court may assess each court cost or fee only once against the defendant.

(b) In a criminal action described by Subsection (a), each court cost or fee the amount of which is determined according to the category of offense must be assessed using the highest category of offense that is possible based on the defendant's convictions.

(c) This article does not apply to a single criminal action alleging only the commission of two or more offenses punishable by fine only.

Added by Acts 2015, 84th Leg., R.S., Ch. 1160 (S.B. [740](#)), Sec. 1, eff. September 1, 2015.